

example. The British attempted to secure a limitation on naval armaments, but Germany rejected this proposal. Although the Hague Conventions were the first multilateral treaties to clarify the rules of war, they were seriously flawed. In particular, neither of them laid out specific penalties for states that violated them. Until the creation of the International Criminal Court (ICC) in The Hague in 2002, it was up to individual states to prosecute for breaches of the Conventions, but states might be unable or unwilling to prosecute.

Two world wars

A third peace conference was planned for 1914, but it was delayed indefinitely due to the outbreak of World War I. The war resulted in many catastrophic breaches of the Conventions—from Germany invading Belgium without warning to the widespread use of poison gas on all sides.

Even greater abuses took place in World War II, including the Holocaust (the worst genocide in history), the carpet bombing of



cities, and the widespread torture and execution of prisoners of war. The United States, Soviet Union (USSR), UK, and France oversaw the establishment of the Nuremberg trials in 1945–1946. These military tribunals applied the provisions of the Hague Conventions to try and sentence the political, military, judicial, and economic leadership of Nazi Germany.

The rules of the Hague Conventions are now considered to be binding on all states, even if they have not directly signed up to them. Although the Conventions had been blatantly flouted during both world wars, the international community recognized the value of international systems of law. This created a space for diplomacy and new international bodies, notably the United Nations, founded in 1945.

In 1954, the Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict was ratified. This is designed to protect cultural heritage, including archeological sites, works of art, and scientific collections. Its roots lay in the ruins of World War I, when Russian artist and writer Nicholas Roerich, appalled by what he had witnessed, campaigned for the protection of sites of scientific and artistic importance. The Roerich

The German city of Dresden in ruins after heavy bombing raids in 1945 destroyed its historic center—including many sites of cultural value—and killed about 25,000 residents.

Pact had been adopted by the Pan-American Union in 1935, but the devastation of World War II reinforced the need for an international treaty to protect cultural property.

The 1954 Convention has since been ratified by 133 states and is overseen by the United Nations Educational, Scientific and Cultural Organization (UNESCO). In 1996, four nongovernmental organizations established the International Committee of the Blue Shield, which is the cultural equivalent of the Red Cross, to promote the ratification of the 1954 Convention.

Prosecuting war crimes

The Hague Conventions still form the cornerstone of the rules of war. Allegations of war crimes can now be tried by the ICC. In 2012, the court delivered its first verdict when it found DR Congo militia leader Thomas Lubanga guilty of war crimes and sentenced him to 14 years imprisonment. It is currently investigating alleged war crimes in 11 countries. ■

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The sad reality is that, over the centuries, many works of art have been lost and cultural sites damaged or destroyed in war.

International Committee of the Red Cross

Statement on the 1954 Hague Convention for the Protection of Cultural Property

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